

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: December 29, 2022

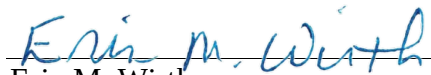
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

**ORDER GRANTING JOINT MOTION FOR SUBSTITUTION OF RESPONDENTS
AND MODIFICATION OF DEADLINE FOR ANSWER**

On December 28, 2022, Marine Transport Logistics, Inc. ("MTL"), Respondent CMA CGM (America) LLC ("CCA") and putative Respondent CMA CGM, S.A. ("CMA") filed a joint motion for substitution of Respondents and modification of deadline for answer ("Motion"). The parties have agreed to allow the substitution of CMA CGM, S.A. as Respondent in place of CMA CGM (America) LLC and to a deadline for CMA to respond to the amended complaint. Motion at 1.

On December 8, 2022, an order was issued granting leave to file an amended complaint that added CMA as a Respondent and requesting that the Office of the Secretary serve CMA. As part of the joint Motion, CMA agrees that, as the parent of its agent CCA, it will be liable for the actions of CCA and for any reparations or other relief that may be awarded by the FMC in this proceeding and to make available any discovery sought regarding actions by CCA. Motion at 1-2. As a condition of the agreement, the parties request that the time to respond to the amended complaint be extended to January 20, 2023. In addition, a revised deadline is set for the parties to file their joint status report with proposed schedule as required by the initial order in this proceeding.

The agreement is reasonable and will facilitate the conduct of the proceeding. Therefore, it is hereby **ORDERED** that the joint Motion be **GRANTED**. To avoid confusion, it is requested that the Office of the Secretary amend the caption to remove CMA CGM (America) LLC as the Respondent and instead indicate that the Respondent is CMA CGM, S.A. Respondent CMA CGM, S.A. shall respond to the amended complaint by January 20, 2023. The parties shall file their joint status report with proposed schedule by January 30, 2023.


Erin M. Wirth
Chief Administrative Law Judge